

Smt. Krishna W/O Late Sh. Vikas vs Sh. Prem Singh Khatri S/O Daryao Singh on 15 February, 2013

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IN THE COURT OF MS. PREETI AGRAWAL GUPTA
JUDGE: MACT(OUTER): ROHINI: DELHI

PETITION NO. 1396/08
DATE OF INSTITUTION:

21.02.05

1. Smt. Krishna w/o Late Sh. Vikas
2. Dinesh s/o Late Sh. Vikas
3. Sandeep s/o Late Sh. Vikas
all r/o Gali no. 8, Gautam Colony,
behind Narela Police Station,
near DDA flats, Narela, Delhi.

....Petitioners

Vs.

1. Sh. Prem Singh Khatri s/o Daryao Singh
r/o 440, Village Banker, Narela, Delhi
2. Ms. Indrawati w/o Sh. Prem Singh Khatri
r/o 440, Village Banker, Narela, Delhi
3. National Insurance Co. Limited
Plot no. 101-106, N-1 BMC House
Connaught Place, New Delhi-110 001.
4. Smt. Rina w/o Sh. Ram Kumar
5. Smt. Ram Kumar s/o Sh. Mange Ram
both r/o 255, Police Colony, Ashok Vihar
Delhi - 110 052.

....Respondents

Krishna Vs. Prem Singh DATE OF INSTITUTION: 22.02.05

1. Rina Sharma w/o Sh. Ram Kumar Sharma
 2. Ram Kumar Sharma s/o Late Sh. Mange Ram Sharma r/o 255, Police Colony, Ashok Vihar, Delhi.
- ... Petitioner Vs.

1. Sh. Prem Singh Khatri s/o Daryao Singh r/o 440, Village Banker, Narela, Delhi
2. Ms. Indrawati w/o Sh. Prem Singh Khatri r/o 440, Village Banker, Narela, Delhi
3. National Insurance Co. Limited Plot no. 101□06, N□ BMC House Connaught Place, New Delhi□
110 001.

JUDGMENT RESERVED ON :
DATE OF CONSOLIDATED JUDGMENT:

13.02.2013
15.02.2013

AWARD : –

There are two claim petitions U/s 163A of the Motor Vehicles Act seeking compensation on account of death of the victim Vikas s/o Sh. Ram Kumar Sharma in the road accident in question on 01.02.2005 Krishna Vs. Prem Singh for which FIR No. 76/05 U/s 279/337 IPC P.S Narela was registered and the victim subsequently succumbed to his injuries on 04.02.05. The first claim petition has been filed by one Smt. Krishna claiming herself to be the widow of the deceased victim with two minor children aged 8 years and 3 years with the claim that the minors are children of the deceased whereas the second petition has been filed by the parents as legal representatives of the deceased with the claim that the deceased had died unmarried at the claimed age of 28 years. It is pertinent to mention that each the claim under consideration was filed U/s 166 and 140 of Motor Vehicle Act and subsequently, in the facts of the case, the amendment was prayed on behalf of the petitioners for which the petition was amended U/s 163A of Motor Vehicle Act. Hence, this consolidated Award/Judgment is being passed U/s 163A of M. V. Act, 1988.

2. As there are two claim petitions seeking compensation for untimely death of the victim in the road accident in question, there Krishna Vs. Prem Singh cannot be two adjudication of the claims separately as the question of entitlement of the petitioners will be relevant for the purpose of disbursement of the compensation so awarded by the Court. In the peculiar and unique facts of the case, a consolidated judgment is being passed in both the claim petitions for just and proper adjudication of the claim in respect of the deceased Vikas in the road accident in question.

3. According to the petitioners (in both the petitions) on 01.02.05, deceased Vikas was going on motorcycle and when he reached Mata Mansa Devi Road in front of Mir Singh Mandir Pana Paposian Narela, Delhi, at that time a Maruti Zen bearing no. DL3F4J051 which was being driven by respondent no. 1 came from opposite direction and from the wrong side of the road, in a very rash and negligent manner and hit the motorcycle with the result that the deceased was grievously injured in the accident and was admitted in Maharishi Balmiki Hospital. Thereafter, the victim was shifted to LNJP Hospital but he Krishna Vs. Prem Singh died during the treatment on 04.02.05 due to the accidental injuries sustained in the accident.

4. It is the case of fatal injuries sustained by the victim Vikas s/o Sh. Ram Kumar Sharma , aged 28 years, in the road accident in question and the claim is being perused u/s 163 A M. V. Act with the averment that the deceased was in private/self employment as driver and Dairy milk work with the earning of Rs. 3300-3500/-per month. The claim of Rs. 10 lakhs each has been put forth by the claimants in the two petitions which are being disposed off by this consolidated judgment. However, it shall be needless to clarify that the computation of just and reasonable compensation on account of loss of life of the victim in the road accident in question shall be done , as per law and distribution and apportionment of the amount of compensation, if any, shall be as per entitlement of each claimant.

5. In the array of respondents, Respondent no. 1 and Respondent Krishna Vs. Prem Singh no.2 are the driver and owner of the offending Maruti Zen respectively. However, only Respondent no. 1 has filed his written statement after which he also stopped appearing. Both Respondent no. 1 and Respondent no.2 are ex parte. In the Written Statement of Respondent no. 1, the involvement of Respondent no. 1/driver and the offending vehicle is not denied. It is denied that the accident in question was caused due to rash and negligent driving of the alleged offending vehicle. It is alleged that the accident in question occurred due to rash and negligent driving by the deceased himself. It shall be relevant to mention that although , defence has been raised by Respondent no. 1/driver about the "fault or neglect" of driving of the motor cycle by the victim but after filing of the written statement , both driver and owner have failed to participate in the case to put forth any defence.

6. The Insurance company/respondent no. 3 has filed its written statement denying its liability towards the petitioners in case of any breach in the terms and conditions of the insurance policy as per Krishna Vs. Prem Singh Section 149 (2) M. V. Act. The claim is also denied on the aspect of the claimed rights of the claimants calling for proving their respective relationship with the deceased. It is , however, admitted that the offending vehicle Maruti Zen bearing no. DL3FBJ0051 was duly insured with it in favour of respondent no. 2/owner/insurer of the vehicle.

7. On the basis of pleadings of the parties, following issues were framed vide orders dated 15.07.06:

Issues in Petition no. 1396/08 and Petition no. 1397/08 a. Whether deceased Vikas sustained fatal injuries in motor accident caused by rash and negligent driving of Maruti Zen Car no. DL3FBJ0051 by Respondent no. 1 on 01.02.2005 at about 3 p.m at near Mata Mansa Devi Road in front of Mir Singh Mandir, Panna Paposiyan, Narela, Delhi? OPP b. Whether petitioners are entitled to compensation? If so, to what amount and from whom?

Krishna Vs. Prem Singh c. Relief However, as discussed here in above, both the claim petitions under disposal were originally filed U/s 166 and 140 Motor Vehicle Act but were subsequently amended and the claims are being pursued U/s 163A of the Act. Accordingly, the Issue no. 1 has been modified vide orders dated 25.07.07 and issues under adjudication are as under:

a. "Whether deceased Vikas sustained fatal injuries in motor accident caused by driving of Maruti Zen Car no. DL3FBJ0051 by respondent no. 1 on 01.02.2005 at about 3:00 p.m at near Mata Mansa Devi Road in front of Mir Singh Mandir, Panna Paposiyan, Narela, Delhi"? b. Whether petitioners are entitled to compensation? If so, to what amount and from whom?

c. Relief

Both the petitions are directed to be consolidated for the

purpose of recording evidence , vide orders of the Court. Krishna Vs. Prem Singh

8. Petitioner evidence has been recorded in Petition no. 1396/08 titled Krishna & Ors. Vs. Prem Singh & Ors. PW□ Krishna has led her chief examination by way of her affidavit Ex. PW□/A wherein she has deposed as wife of the deceased . PW□ has stated that the deceased was her husband who had also left behind two sons namely Dinesh , aged about 10 years and Sandeep , aged about 5 years, besides the parents of the deceased. The charge□sheet in FIR no. 76/05 U/s 279/337 IPC dated 01.02.05 has been tendered along with other relevant documents which form part of criminal case record such as Registration Certificate, Site plan, Driving licence , Mechanical Inspection Report of the offending vehicle as well as motorcycle of the deceased as well as Post□ Mortem report of the deceased. PW□ has also relied upon some photographs of her alleged marriage with the deceased. She has been cross examined at length. During cross examination, Krishna has admitted that she was a witness in a Krishna Vs. Prem Singh criminal case in FIR no. 63/99, U/s 302/34 IPC , P.S. Narela Industrial Area , although , denying the alleged statement as given by her before the police. She denied that she was wife of Sri Bhagwan who was murdered for which the above detailed FIR was registered. She admitted that one Darshna was her elder sister who was married to above named Sri Bhagwan in 1974. The statement Ex. PW 1/SA recorded before the court of Ld. ASJ in the above□said murder criminal trial , by her on 6.5.2000 has been admitted. She has deposed that she was living with Vikas (deceased in road accident in question) along with Sri Bhagwan and corrected herself to say that she and Vikas never lived with Sri Bhagwan. She has specifically denied the suggestion that children Dinesh and Sandeep were not her sons born out of wedlock between her and Vikas. She was unable to furnish the birth certificates of her children. During the course of examination, her voter I card was produced as Ex. PW 1/R4/1 to show that she was 31 years of age at the time of her deposition on 11.12.09. On the aspect of relationship with Darshna, she explained that Krishna Vs. Prem Singh Darshna was elder to her but not the real sister. During further examination, Smt. Krishna admitted that she was married to Vikas Kumar (deceased), during life time of Sri Bhagwan .

9. Sh. Ram Kumar Sharma is the father of the deceased victim who is the petitioner no. 2 in Suit No. 1397/08 (one of the two claim petitions under disposal) and also the respondent no. 5 in S. No. 1396/08 (the other of the two claim petitions under disposal). He has filed his evidence of affidavit as a witness and his evidence of affidavit with the deposition that his son Vikas was aged 28 years at the time of accident with the claim that he was unmarried and left behind his parents as legal heirs. He has specifically deposed that the claimants Krishna and minors Dinesh and Sandeep (written as Andeep inadvertently) in Suit No.1396/08 are not the L.Rs of deceased and are not the wife and children of the deceased Vikas, as claimed . During cross examination, he has clarified that Reena Sharma (petitioner no. 1 in Suit NO. 1397/08 as mother of deceased) ,is the Krishna Vs. Prem Singh step mother of deceased Vikas. He deposed that his first wife Indumati was the mother of Vikas who expired in 1976 and then he got remarried to Reena Sharma in the year 1997. He admitted that his son Vikas had gone to his maternal grand parents after his birth and came to him in 1984. He claimed that the deceased was on visiting terms with him and that his name was included in his medical card , denying the suggestion that the deceased did not live with him at any point of time.

10. PW□ is a Record Clerk from Maharishi Balmiki Hospital who has tendered one MLC of Krishna dated 14.1.04 as Ex. PW 3/A.

11. PW□4 is a police witness who has produced the DD entry no. 22B dated 14.1.04 as Ex. PW 4/A in respect of a complaint filed by Krishna against deceased Vikas.

12. PW□5 Smt. Omwati has deposed as a relative of petitioner Krishna Vs. Prem Singh Krishna that she had attended the marriage of the petitioner Krishna with deceased Vikas in January, 1993. She has deposed in cross examination that she was acquainted with petitioner Krishna since five years prior to her marriage with Vikas and also disclosed her acquaintance with Sri Bhagwan as brother in law of petitioner Krishna. She has also deposed that the said Sri Bhagwan was married with one Darshna and expressed lack of knowledge about any relationship between said Darshna and petitioner Krishna.

13. PW□6 is the witness from MCD School, Narela, Delhi who produced the summoned record comprising of admission register of Dinesh Kumar s/o Sri Vikas as Ex. PW□6/A. He has been cross examined on the aspect of non mentioning of the name of mother of the child in the school register.

14. PW□7 is another witness from MCD School (other branch) who produced the summoned record pertaining to the school admission of Krishna Vs. Prem Singh Dinesh Kumar s/o Vikas as Ex. PW 7/A. In his deposition, he has admitted that admission was done on the basis of transfer certificate of the previous school.

15. PW□8 is a police official who produced the summoned record pertaining to DD no. 22B dated 14.11.04 and tendered the same as Ex. PW 8/A and admitted that the entry about the quarrel between the parties did not disclose the identity of the parties. Thereafter, petitioner evidence was closed.

16. As already recorded, here□n□above, the father of the deceased Ram Kumar Sharma has tendered his evidence as respondent's witness also since he is respondent no. 5 in the array of respondents in the petition filed by Krishna along with minors . He is petitioner no. 2 in his own capacity as a claimant in the other petition. He has denied the relationship of petitioners in Suit. No. 1396/08 as he has denied the marriage and parentage of the claimants in the above mentioned Krishna Vs. Prem Singh petition. His testimony is relevant as a important witness. There is no other evidence for respondents recorded.

17. On completion of the recording of evidence, respective arguments of ld counsels for parties have been heard. The voluminous evidence in both claim petitions have been duly appreciated. The relevant law and authorities have been duly considered in the facts and circumstances of the case. The findings on the issues are as under:

ISSUE NO. 1:□"Whether deceased Vikash sustained fatal injuries in motor accident caused by driving of Maruti Zen Car no. DL□3F□AJ□0051 by respondent no. 1 on 01.02.2005 at about 3:00 p.m at near Mata Mansa Devi Road in front of Mir Singh Mandir, Panna Paposiyan, Narela, Delhi? OPP

18. According to the petitioners (in both the petitions) on 01.02.05, Krishna Vs. Prem Singh deceased Vikas was going on motorcycle and when he reached Mata Mansa Devi Road in front of Mir Singh Mandir Pana Paposian Narela, Delhi, at that time a Maruti Zen bearing no. DL3F AJ 0051 which was being driven by respondent no. 1 came from opposite direction and from the wrong side of the road in a very rash and negligent manner and hit the motorcycle with the result that the deceased was grievously injured in the accident and was admitted in Maharishi Balmiki Hospital. Thereafter, the victim was shifted to LNJP Hospital but he died during the treatment on 04.02.05 due to the accidental injuries sustained in the accident.

19. It is the case of fatal injuries sustained by the victim Vikas s/o Sh. Ram Kumar Sharma , aged 28 years, in the road accident in question and the claims are being perused u/s 163 A M. V. Act with the averment that the deceased was in private/self employment as driver and Dairy milk work with the earning of Rs. 3300-3500/- per month.

Krishna Vs. Prem Singh

20. In the Written Statement of Respondent no. 1, the involvement of Respondent no. 1/driver and the offending vehicle is not denied. It is, however, denied that the accident in question was caused due to rash and negligent driving of the alleged offending vehicle. It is alleged that the accident in question occurred due to rash and negligent driving by the deceased himself. As such, respondent no. 2/owner of the offending vehicle has not contested the petition . Respondent no. 3/Insurance company has admitted that the alleged offending vehicle was duly insured with it in favour of respondent no. 2/ registered owner of the offending vehicle in question.

21. The fact that the victim Vikas suffered the accident in question on 01.2.05 while going on his motorcycle which was hit by the offending Maruti Zen Car bearing no. DL3F AJ 005, being driven by respondent no. 1 is not a disputed fact , by any of the parties. It is established that FIR NO. 76/05, U/s 279/337 IPC, P.S Narela was Krishna Vs. Prem Singh registered and the victim Vikas succumbed to his fatal injuries at LNJP Hospital (where he was shifted from Maharishi Balmiki Hospital) on 04.02.05. Charge sheet U/s 279/304A IPC is Ex. PW 1/1 wherein respondent no. 1 is the accused. The necessary documents of criminal investigation such as RC, mechanical inspection report, driving licence of respondent no. 1, site plan are duly exhibited and proved. The post mortem of the deceased Ex. PW 1/9 corroborates the fact of accident on 1.2.2005 and cause of death of the victim Vikas on 04.02.05 due to the injuries sustained in the road accident in question. It is , therefore, established that deceased Vikas sustained fatal injuries in the motor accident caused by Maruti Zen Car no. DL3F AJ 0051 on 01.02.05 causing his death during treatment on 04.02.05.

22. The present case has been amended by the claimants and pursued U/s 163A of Motor Vehicles Act which are special provisions relating to the payment of compensation on structured Krishna Vs. Prem Singh formula basis. The Hon'ble Supreme Court of India duly considered the law in Oriental Insurance Company Ltd. VS. Hansraj Bhai Vs. Kodala ; (2001) 5 SCC 175. The Hon'ble Apex Court observed that these provisions are applicable to a special category of victim having annual income of not more than Rs.40,000/- (forty thousand) and that ,too , without proving the negligence of the

driver of the vehicle involved by virtue of a beneficial legislation enacted for that purpose and is governed by Second Schedule of the Act. However, the claim U/s 163A of the Act restricts the claim of compensation U/s 140 M. V. Act which is based upon the principle of "no fault" liability. The compensation payable U/s 163 A is in alternative to determination of compensation U/s 168 of the Motor Vehicle Act. If a claim is filed U/s 168 r/w 166 M. V. Act wherein the aspect of "neglect, wrongful act or default" of the offending vehicle is to be pleaded and established, the compensation was payable U/s 140 of the Act without the necessity of establishing any wrongful act, neglect or default of the offending vehicle/person responsible for death Krishna Vs. Prem Singh or disablement. Under Section 141(3) of the Act, if a person gets the compensation on principle of fault liability, then legal provision has been made for adjustment of compensation received U/s 140 M. V. Act. There is no such provision of adjustment of compensation received U/s 163A from the compensation receivable "under the Act" on the principle of fault. Therefore, the scheme of compensation U/s 163A of Motor Vehicle Act is to draw out a compensation based on structured formula for getting the relief to the claimants at the earliest. The scheme of legislature U/s 163A of M. V. Act is clearly in alternative to the determination of compensation U/s 168 M. V. Act on fault basis under the Act. The Hon'ble Supreme Court further appreciated the law for payment of compensation U/s 163A of the Motor Vehicle Act, after duly considering the scheme of other provisions in the Act. It was held that compensation payable U/s 163A of the Act was not an interim measure, but was final.

23. The above preposition of law has been duly appreciated as Krishna Vs. Prem Singh the law of the land in National Insurance Co. Ltd. Vs. Sinitha & Ors. in Special Leave Petition (C) No. 6513 of 2007 by the Hon'ble Supreme Court of India. The Hon'ble Apex Court further developed the law on the issue "whether a claim for compensation made U/s 163 A of the Act, can be defeated either by the owner or by the Insurance company, by pleading and establishing, that the accident in question was based on the 'negligence' fault or default". It was further discussed "whether a claim made u/s 163A of the Act is a claim under the fault liability principle or under the no fault liability principle". After appreciating the various provisions under the M. V. Act, the binding legal position has been concluded by the Hon'ble Apex Court in National Insurance Co. Ltd. Vs. Sinitha & Ors. (Supra) that:

"Section 163A of the Act has an overriding effect on all other provisions of the Motor Vehicles Act, 1988... that there is no basis for inferring that Krishna Vs. Prem Singh Section 163A of the Act is founded under the "no fault" liability principle..... that on the conjoint reading of Sections 140 and 163A, the legislative intent is clear, namely, that a claim for compensation raised under section 163A of the Act, need not be based on pleadings or proof at the hands of the claimants showing absence of "wrongful act", being "neglect" or "default".....

however, it is open to the owner or insurance company, as the case may be, to defeat a claim under Section 163A of the Act by pleading and establishing through cogent evidence a "fault"

ground ("wrongful act" or "neglect" or "default"). It is, therefore, doubtless, that Section 163A of the Act is founded under the "fault" liability principle."

24. In the present case, it shall be relevant to mention that Krishna Vs. Prem Singh although , defence has been raised by Respondent no. 1/driver about the "fault or neglect" of driving of the motor cycle by the victim but after filing of the written statement , both driver and owner have failed to participate in the case to put forth any defence. As here in above discussed as the law of the land laid down by the Hon'ble Supreme Court of India, the present claim U/s 163A of the Motor Vehicle Act is based upon the claim of compensation on the structured formula basis and is governed by the Second Schedule of the Act . These provisions are applicable to special category of victims where the claim is restricted to the annual income of the deceased for not more than Rs. 40,000/-. The claimants have alleged that the accident was caused due to rash and negligent driving of the offending vehicle by respondent no. 1 . Neither of the respondents have been able to establish through cogent evidence any rash and negligent or faulty driving of the victim as the cause of accident . They have not led any evidence to show or prove 'wrongful act, neglect or default', to defeat the claim of the claimants. The factual position emerging from the Krishna Vs. Prem Singh evidence on record does not reflect any 'negligence' at the hands of the victim. As discussed above in the claim raised U/s 163A of the Act, the claimants have neither to plead nor to establish negligence. The negligence can be established by the owner or the insurance company to defeat a claim U/s 163 A of the Act. It is , therefore, imperative for the respondents/insurance to not only plead negligence but also to establish the same through cogent evidence. There is nothing in cross examination of petitioners witnesses to contradict the factual position of occurrence of the accident and no affirmative evidence in defence has been led by the respondents to show that the victim was negligent when the accident occurred. In view of the facts and circumstances, it is duly established that the deceased Vikas sustained fatal injuries in motor accident caused by driving of Maruti Zen Car no. DL3FBJ0051 by respondent no. 1 on 01.02.2005 at about 3 p.m at near Mata Mansa Devi Road in front of Mir Singh Mandir, Panna Paposiyan, Narela, Delhi.

25. ISSUE NO.2:

Krishna Vs. Prem Singh Whether petitioners are entitled to compensation? If so, to what amount and from whom?

This petition under adjudication U/s 163A of Motor Vehicles Act has been filed by the petitioners as legal representatives of the deceased Vikas. One claim in S. No. 1396/08 has been filed by one Smt. Krishna claiming herself to be wife of deceased. In this claim, two minor sons Dinesh and Sandeep aged 8 years and 3 years, respectively are also the petitioners claiming to be children of the deceased. The other claim in S. No. 1397/08, also under disposal by this judgment, has been filed by petitioners claiming themselves to be the parents of unmarried deceased.

It is the case of the claimants (in both the petitions) that deceased Vikas was 28 years at the time of accident and that the petitioners were financially and emotionally dependent upon the deceased. The claimants are required to prove their individual entitlement to get compensation due to untimely death of the victim Vikas . Under section 163A of M. V. Act, the entitled claimants shall get Krishna Vs. Prem Singh compensation on the structured formula basis whereby annual income of the victim

shall not exceed Rs.40,000/- as notified in the Second Schedule of the Act. The amount of compensation, therefore, will be determined in accordance with the Second Schedule of the Act.

26. It is case of the claimants that the deceased was earning Rs. 3,300/- to Rs. 3500/- per month and since the present petition arises by virtue of Section 163A Motor Vehicle Act, the claim of the deceased has to be restricted to the annual income of not more than Rs. 40,000/- per month as per the Second Schedule of the Act. The monthly income of the deceased for the purpose of this claim is taken as Rs. 3,300/- per month so that his annual income is Rs. 39,600/-, being less than Rs. 40,000/-. For the purpose of age of the deceased, Ex. RW1/PA which is the CGHS Card of father of deceased corroborates the recording of the age of the victim in the post mortem report as 27-28 years, as claimed by the petitioners. The age of the deceased shall be taken as 28 years, as claimed by the petitioners. Krishna Vs. Prem Singh As the petitioner was aged 28 years, the appropriate multiplier of 18 has to be applied to compute his loss of earning capacity, as per the SECOND SCHEDULE FOR COMPENSATION FOR THIRD PARTY FATAL ACCIDENT CLAIMS U/s 163A . However, the applicability of multiplier is dependent upon the category of dependents.

27. At this stage, it is relevant to first examine the aspect of entitlement of each claimant to receive compensation for accidental death of the deceased. Under the Motor Vehicle Act , claimants have to be legal heirs of the deceased/victim .

28. As regards Petition no. 1397/08 which is a claim filed by alleged parents of the deceased , it is duly established that petitioner no. 2 Ram Kumar Sharma is the father of the deceased Vikas who was about 57 years of age at the time of accident in question. As Krishna Vs. Prem Singh regards Reena Sharma-petitioner no.1 , it is claimed that she is entitled to the compensation , being mother of the deceased. However, the father of the deceased Ram Kumar Sharma has admitted during his examination that Vikas was born to his first wife Indumati who expired in 1976 and that Reena Sharma was second wife of father of deceased. Therefore, Reena Sharma , is not the legal heir of the deceased as she is only his step mother. Needless to say that Reena Sharma may be a Class I Legal Heir of Sh. Ram Kumar Sharma, being his wife but she has no direct blood or legal relationship with the deceased. It is also relevant to observe that as such the deceased Vikas was not regularly residing with petitioner no. 2 Ram Kumar Sharma as admittedly he was residing with his maternal grandparents as reflected by ration card of petitioner no. 2 Ex. PW-1/7. However, he was the natural son and member of the family of petitioner no. 2 Ram Kumar Sharma as reflected from the CGHS Card Ex. RW1/PA of petitioner no.2. Therefore, petitioner no. 2-Sh. Ram Kumar Sharma in Suit no. 1397/08 is entitled to get compensation on account of Krishna Vs. Prem Singh accidental death of deceased, being his natural father.

29. As regards Petition no. 1396/08 which is a claim filed by alleged wife and children of the deceased, it is the case of petitioner no.1/Smt. Krishna that she was legally wedded wife of the deceased in question and that petitioner no. 2 namely Dinesh and petitioner no. 3 namely Sandeep aged 8 and 3 years respectively , are minor children of the deceased. The relationship of the petitioners is vehemently disputed by the parents of the deceased. Petitioner no.1/Krishna has led her deposition as PW-1 and has claimed the matrimonial relationship with the deceased. There has

been substantial cross examination of petitioner no. 1 by Ld counsel for the parents of the deceased who have been challenging this claim. In support of the claim under consideration, one more witness PW□5 Smt. Omwati has been examined by the petitioners. Also, PW□3 and PW□4 have been examined by the petitioners to establish the claimed relationship with the deceased. PW□6 and PW□7 have been examined to produce school Krishna Vs. Prem Singh records of petitioner no. 2 who is the claimed minor elder son of the deceased.

It is relevant to first examine the relationship between petitioner no. 1 Krishna with the deceased. In this regard in order to discredit the claim of Krishna, heavy reliance has been placed upon the criminal case record in one FIR No. 63/99 U/s 302/34 IPC P.S Narela Industrial Area. Pursuant to the above detailed FIR , there were two murder accused charge□sheeted which included Vikas Sharma who is the deceased in the present claim. The two accused were acquitted vide judgment of Ld. Sessions Court in case bearing no. 63/99 vide orders dated 21.5.2001. The accident in question took place on 01.02.05 which caused fatal injuries upon said Vikas Sharma, causing his death. The certified copies of the court proceedings in the said murder case including the statement of witnesses recorded before the Ld. Sessions Court have been filed. Some of these statements have been confronted to PW□1 Krishna . It is also necessary to mention that the said murder case involved the victim Sri Bhagwan who is alleged Krishna Vs. Prem Singh husband of Smt. Krishna /petitioner no.1.

Krishna/petitioner no. 1 has admitted that Ex. PW □/SA was the certified copy of her statement recorded before the Ld. ASJ in the murder trial against the deceased of this case on 6.5.2000. The appreciation of the statement reveals that petitioner no.1/Krishna testified before the Ld.Sessions Court as PW□22 whereby her identity has been recorded as `Smt. Krishna w/o Sri Bhagwan, housewife r/o D□6, Paana Udyan, Narela, Delhi'. During cross examination before this Court on being confronted with her statement made before the Sessions Court, she has denied that she got married to Sri Bhagwan. PW□1 admitted that she was living with Sri Bhagwan after death of her sister Darshna who was married to Sri Bhagwan. She denied that she had stated to the police that she was married to Sri Bhagwan in the year 1975. She has testified that she was living with Vikas Kumar during the life time of Sri Bhagwan claiming that she was married to Vikas Kumar. At one time, she has admitted that she lived with Sri Bhagwan along with Vikas and then said again that she and Vikas Krishna Vs. Prem Singh never lived with Sri Bhagwan. Also relevant is the testimony of PW□6 Prabhu Dayal (father of murder victim) in the murder trial case which reflects that Sri Bhagwan got married to Krishna (petitioner no. 1 herein) in the year 1975 and it is also reflected from record that the wife of Sri Bhagwan (Krishna) went missing prior to his murder. The fact gets supported from the testimony of Krishna herself, recorded during the murder trial that she got to know about the murder of her husband Sri Bhagwan even after he had been cremated . The other witness PW□5 Omwati has been examined as a relative of Krishna but her cross examination has many discrepancies and contradictions which do not render the witness as a reliable witness as she did not even know that the first wife of Sri Bhagwan (Darshna) and petitioner no.1/Krishna, herein were sisters.

After carefully examining the admissible aspects of evidence , both oral as well as documentary , the relationship between petitioner no. 1/Krishna and the deceased Vikas Kumar as legally wedded

husband and wife could not be established. As per Section 11 of Krishna Vs. Prem Singh Hindu Marriage Act, the marriage, if any, between petitioner no. 1 with deceased Vikas during the life time of Sri Bhagwan is a void marriage. A marriage in contravention of Section 11 of HMA must be treated as null and void from its very inception and there is no requirement of any formal declaration from a competent court of law. This is the legal position as intended by the legislature. The Hon'ble Apex Court has laid down the aforesaid legal preposition about void marriages in Yamuna Bai Anantrao Adhav Vs. Anantrao Shivram Adhav; AIR 1988 SC 644. Therefore, petitioner no.1 Smt. Krishna could not have married Vikas (deceased in this claim) during the lifetime of her husband Sri Bhagwan. The fact that she was married to Sri Bhagwan is undisputable, duly established and believable since all the circumstances and preponderance of probabilities point out towards the re-marriage of Sri Bhagwan to Krishna after the death of her elder sister Darshna. Petitioner no. 1 has herself testified before the Sessions Court during trial of murder of her husband, in which the deceased in this claim Krishna Vs. Prem Singh was one of the accused, as wife/widow of Sri Bhagwan. In view of the facts and circumstances and legal position, petitioner no. 1 /Krishna is not the legally wedded wife of the deceased victim in the road accident in question and therefore, is not a legal representative /legal heir of the deceased and accordingly, not entitled to receive compensation due to death of deceased in road accident in question.

The relationship of petitioner no. 2 and petitioner no. 3 shall, now, be examined for deciding their entitlement. Both the minors, petitioner nos. 2 and 3 are stated to be sons of deceased Vikas from his relationship with petitioner no.1/Krishna. During evidence, the paternity of petitioner nos. 2 and 3 has been challenged in cross examination of PW□ with the suggestion that the elder child Dinesh was son of Sri Bhagwan from his first marriage to Darshna. PW□ has categorically denied the contrary suggestions. There has been utmost confusion amidst names of children that have been put as suggestions during cross examination of PW□. After carefully Krishna Vs. Prem Singh considering the entire evidence in this regard, the crux of the factual matrix that has emerged is that there were three children of Sri Bhagwan with his first wife Darshna. Sri Bhagwan re-married petitioner no. 1 but they did not have any children. During the subsistence of marriage with Sri Bhagwan, petitioner no.1 Krishna developed close relationship with Vikas. As the elder child Dinesh was 8 years at the time of death of Vikas on 01.02.2005, whereas the husband of Krishna namely Sri Bhagwan has been murdered on 04.03. 1999, it is clear that petitioner no. 2 Dinesh was born prior to death of Sri Bhagwan, though, he was not the child of Sri Bhagwan and Krishna. The law recognises legitimacy to any child of a void marriage on the same platform as if the marriage had been valid by virtue of Section 16 of Hindu Marriage Act, 1955. It is clear from the school records produced by PW□6 and PW□7 that Dinesh Kumar was registered as son of the deceased Vikas in his school records, though, the name of his mother was not disclosed for obvious reasons. The fact is reflected from perusal of record Ex. PW 6/A and Ex. PW Krishna Vs. Prem Singh 7/A. The testimony of PW□ is duly corroborated on the aspect of paternity of petitioner no. 2/Dinesh. As regards petitioner no. 3/Sandeep, Ram Kumar Sharma/petitioner no. 2 in other petition or respondent no. 5 in this petition, has deposed challenging the paternity of Sandeep also. The testimony of Sri Ram Kumar Sharma is not believable on this account as the bald deposition is not based on any reason or documents. PW□ has categorically testified about the paternity of her son Sandeep and has strongly denied all contrary suggestions. Even the photographs relied upon by the petitioner reflect and support the claim of paternity of petitioner nos. 2 and 3 viz. the deceased

Vikas. Therefore, petitioner no. 2 and 3 shall be entitled to compensation on account of death of their father Vikas in the road accident in question, as per Section 16 of Hindu Marriage Act, 1955.

30. Now, the quantum of compensation shall be determined, as per entitlement of the L.Rs of the deceased victim. As already discussed Krishna Vs. Prem Singh here ☐ In ☐ Above, the annual loss of income of the deceased has been computed as Rs. 39,600/☐ Since the deceased is represented through two minors children besides his father, the appropriate multiplier as per Second Schedule of Motor Vehicle Act for compensation U/s 163A of the Act shall be 18 as the deceased was 28 years old at the time of accident. Therefore, the loss of earning capacity comes to Rs. 7,12,800/☐ (Rs. 39,600 x 18).

31. In the facts of the case, as the deceased has two minor children and father as dependents, as per law, 1/3rd is to be deducted towards personal and living expenses from the income of the deceased. The loss of dependency is, therefore, calculated at Rs. 4,75,200/☐ (Rs. 7,12,800/☐ less 2,37,600/☐.

32. The petitioners shall be entitled to an amount of Rs 7,000/☐ is added towards funeral and miscellaneous expenses which the petitioners had to incur due to the death of deceased. Krishna Vs. Prem Singh

33. Relying upon the judgment titled Smt. Sarla Verma & Ors Vs Delhi Transport Corporation & Anr. (Supra), an amount of Rs 5,000/☐ is granted towards loss of estate. The father and children of the deceased are also entitled for compensation on account of loss of love and affection. Under this head a consolidated sum of Rs. 25,000/☐ is granted to them, as per law.

34. Thus, the total compensation awarded to petitioners is detailed as below:☐

1. Loss of dependency Rs . 4,75,200/☐

2. Funeral & miscellaneous expenses Rs 7,000/☐

3. Loss of estate Rs 5,000/☐

4. Loss of love and affection Rs. 25,000/☐ Total awarded compensation Rs 5,12,200/☐

35. So far as the liability to pay compensation is concerned, there is Krishna Vs. Prem Singh no violation of terms and conditions of the insurance policy. In these circumstances, respondent no. 1 being the driver is primarily liable to pay compensation. Respondent no. 2 and 3 being owner and insurer are vicariously liable to pay the compensation. Compensation is payable by respondent no. 3 being insurer, as vehicle was duly insured as on the date of accident. The issue is disposed of accordingly.

36. RELIEF:

In view of the aforesaid discussions, I hereby hold that petitioners are entitled to a sum of Rs. 5,12,200/□ along with interest @ 7.5% per annum from the date of filing of present petition till its realization.

In view of the foregoing facts and reasons, father of the deceased who is petitioner no. 2 (in petition no. 1397/08) and children of the deceased who are petitioner nos. 2 and 3 (in petition no.1396/08)) have been held entitled to receive compensation on account of Krishna Vs. Prem Singh accidental death of the deceased under consideration. Therefore, each of the entitled petitioners namely Sh. Ram Kumar Sharma and both the minors Dinesh and Sandeep who are the claimants in two petitions are held entitled to equal shares out of the total compensation receivable by virtue of this Award.

Keeping in view the period of pendency of the petition, considerable expenditure must have been incurred during the pendency of the petition upon the minors, it is deemed appropriate and so directed that 75% of the awarded amount along with proportionate interest, as per respective shares of each of the minor petitioner nos. 2 and 3 namely Dinesh and Sandeep (Petition no. 1396/08) be kept in FDRs in favour of each minor till they attain the age of majority.

Out of the respective share of petitioner Ram Kumar Sharma, 75% along□ with proportionate interest shall be held in fixed deposits for a period of two years, four years, six years, eight years and ten years in equal proportion. Rest 25% along□ with proportionate interest Krishna Vs. Prem Singh be released to each of the petitioners as per their apportioned shares.

The FDRs shall have facility of interest on monthly/quarterly basis. However, there shall be no facility of premature withdrawal, loan or advance against the FDRs as per this Award. The petition is disposed off in aforesaid terms. Respondent no. 3 is directed to deposit the cheques in the names of the claimants within 30 days before this Tribunal. Respondent No.3 is also directed to furnish certificate of TDS, if applicable. Copy of this award be also kept in other connected suit. File be consigned to Record Room.

ANNOUNCED IN THE OPEN
COURT ON 15.02.2013

(PREETI AGRAWAL GUPTA)
JUDGE MACT: ROHINI
(OUTER-I): DELHI

Krishna Vs. Prem Singh

Krishna Vs. Prem Singh

Suit no. 1396/08 and Suit no. 1397/08

15.02.2013

Present: Counsel for petitioner.

Vide separate judgment, award is passed in favour of petitioners to a sum of Rs. 5,12,200/-(after deduction of interim award, if any) as compensation along with interest @ 7.5% per annum from the date of filing of present petition till its realization. Respondent no. 3/insurance company is directed to deposit the cheques in the names of the claimants within 30 days before this Tribunal. Respondent No.3 is also directed to furnish certificate of TDS if applicable. File be consigned to Record Room.

(PREETI AGRAWAL GUPTA) JUDGE, MACT (OUTER) ROHINI : DELHI Krishna Vs. Prem Singh